

**BEFORE THE BOARD OF BEHAVIORAL SCIENCE
OF THE STATE OF IOWA**

RE:
Mental Health Counselor License of:

**CASE NOS. 14-044&14-0104
DIA NO. 15BS001**

**MICHAEL PIERCE
License No. 001194**

**FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER**

Respondent

On February 5, 2015, the Iowa Board of Behavioral Science filed a Notice of Hearing and Statement of Charges alleging the following three counts against Respondent Michael Pierce, MHC:

- Count I: Violation of a law of this state related to the practice of the profession, specifically Iowa Code section 232.69, pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(13).
- Count II: Failing to comply with the current Code of Ethics of the American Counseling Association, specifically sections B.1.d (Explanation of Limitations) and B.5.c (Release of Confidential Information), pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)"b."
- Count III: Engaging in practice harmful or detrimental to the public, pursuant to Iowa Code section 147.55(3) and 645 IAC 33.2(4).

Prehearing conferences were held on August 21 and September 4, 2015. The hearing was held before the Board on September 9, 2015 at 9:00 a.m. The following Board members presided at the hearing: Erik Oostenink, MHC, Chairperson; Amy Crow Sunleaf, MHC; Donald Gilbert, MHC; Sarah Thomas, MFT; Jeff Kerber, MFT; Wade Leuwerke and Jill Struyk, Public Members. The state was represented by Assistant Attorney General Laura Steffensmeier. Michael Pierce (Respondent) was represented by attorneys Jason Palmer and Jennifer Klever-Kirkman. Administrative Law Judge Margaret LaMarche assisted the Board in conducting the hearing. The hearing was closed to the public at Respondent's request, pursuant to Iowa Code section 272C.6(1)(2015), and was recorded by a certified court reporter. After hearing all the

evidence and examining the exhibits, the Board convened in closed session, pursuant to Iowa Code section 21.5(1)(f)(2015), to deliberate its decision. The administrative law judge was instructed to prepare the Board's written decision, in accordance with the deliberations, for review and approval by the Board.

THE RECORD

The record includes the Notice of Hearing and Statement of Charges; Board Orders Rescheduling Hearing; Motion to Quash Subpoena and Renewed Motion to Quash; Respondent's Resistance to Motion to Quash; Motion for Stipulated Protective Order; Protective Order & Confidential Agreement; Ruling Denying Motion to Quash; State Request for Prehearing Conference; Order Following Prehearing Conference; State and Respondent Witness List; State Amended Witness List; Respondent Motion to Compel DHS to Fully Comply With Subpoena; Respondent Objections to State Exhibits, Respondent Motion in Limine, and Respondent Objection to Telephone Witnesses; Ruling Denying Motion To Compel DHS to Fully Comply With Subpoena; Ruling on Respondent's Motion in Limine and Objections to State Exhibits; September 4, 2015 Email allowing State witnesses to appear by telephone; September 8, 2015 Email allowing Respondent's witnesses to appear by telephone.

The record also includes the testimony of JD, PO, C, J, LS, TD, Shari McNeeley, and Respondent; State Exhibits 1-9, 11-22; and Respondent Exhibits A-D and F-K.

FINDINGS OF FACT

1. Respondent is currently licensed by the Board as a mental health counselor (license number 001194). His license expires on September 30, 2016. (Respondent testimony; State Exhibit 1)
2. Respondent completed an M.S. in Education and Counseling in 2006. In May 2009, Respondent became employed by Mid Iowa Family Therapy Clinic (Mid-Iowa) and the Institute for Therapy and Psychological Solutions, LLC (ITPS) to provide mental health counseling services. Respondent was not yet licensed as a mental health counselor at that time, but he was allowed to provide mental health counseling under the supervision of a licensed counselor, in order to satisfy the supervised clinical

experience requirements to obtain a license.¹ Respondent had several different supervisors while he was employed by Mid-Iowa and ITPS. (Respondent testimony)

On June 3, 2009, Respondent signed an “Employee Acknowledgment Form” to verify that he had read and understood his employer’s Policy and Procedure Manual and Personnel Handbook. The policy on “Reporting Abuse” stated that employees who are mandatory child abuse and/or dependent adult abuse reporters will be notified of their status as a mandatory reporter prior to having any contact with a client. The policy included a summary of the state law requiring mandatory reporters to make a verbal report to the Department of Human Services (DHS) within 24 hours and a written report within 72 hours of any suspected or witnessed abuse. The policy required employees to report any suspicious act. The policy stated that it was not the employee’s responsibility to investigate or prove whether the client had been abused or treated inappropriately. (Respondent testimony; State Exhibit 16)

Provision of Mental Health Counseling Services to C and J in 2009 and 2010

3. In October 2009, Respondent began providing weekly individual mental health counseling for two siblings, 12 year old C and 10 year old J.² C and J had been removed from their biological mother’s home and placed in their biological father’s home after they witnessed domestic violence against their mother by their mother’s boyfriend. Respondent was treating both children for Post-Traumatic Stress Disorder (PTSD). (Respondent, McNeeley testimony; State Exhibits 11, 14, 15; Respondent Exhibits A-C)

4. DHS was also involved with C and J’s family. DHS employee Shari McNeeley was the assigned caseworker for the family. McNeeley explained that Mid-Iowa had a contract to provide therapy and other services, including FSRP³ services, for DHS. Mid-

¹ See Iowa Code section 154D.2(2), 154D.4(2)(b)(2009); 645 IAC 31.7(3), Iowa Administrative Bulletin (IAB) 9/23/09.

² Respondent’s records for these clients are on letterhead for the Institute for Therapy and Psychological Solutions, LLC (ITPS). According to documents filed with the Board, ITPS and Mid-Iowa are separate legal entities held by common ownership. At the time pertinent to this proceeding, Mid-Iowa was providing child welfare services through a contract it had with the Iowa Department of Human Services (DHS), and Magellan. ITPS was providing outpatient therapy services through a variety of third party payors. Mid-Iowa and ITPS had an agreement in effect to lease employees to perform therapy services for compensation. Respondent reportedly was a leased employee from Mid-Iowa to ITPS and was providing mental health counseling to C and J through ITPS. (See Renewed Motion to Quash Subpoena Duces Tecum and Ruling Denying Motion to Quash Subpoena Duces Tecum)

³ FSRP stands for “family safety, risk, and permanency service.” The administrative rules of DHS explain that this is a service that uses strategies and interventions designed to achieve safety and permanency for

Iowa employee Melodee Whaley and Mid-Iowa supervisor Jennifer Schmitz were assigned as the FSRP workers for C and J's family. (McNeeley, Respondent testimony; Respondent Exhibit A)

5. On January 21, 2010, C told DHS caseworker Shari McNeeley that her father was sexually abusing her. McNeeley called Respondent that afternoon and told him about C's disclosure to her. Respondent told McNeeley that he had not heard any of these things from C, but he had not been able to see her for two weeks because of the weather. Respondent told McNeeley that he was "unsure" about C's allegations and that the last time he met with J and his brother, they told him about "Team Mom." Respondent told McNeeley that the children had told him that they would do whatever it takes to go live with their mother. (McNeeley, Respondent testimony; Respondent Exhibit A, Bates Nos. 0508-0509)

C, who is now 18 years old, provided compelling and credible testimony at hearing. Documentation in the record corroborates or supports much of C's testimony. C recalled that when she told the DHS worker that her father was sexually abusing her, the worker told her that she should tell her counselor. When she testified, McNeeley agreed that she would have told C to tell Respondent about the abuse. C told Respondent about the sexual abuse later that same evening. Respondent responded by telling C that it was a serious allegation and if she was lying, she could get in a lot of trouble. C told Respondent that she was not lying, but she did not think that Respondent believed her. C told Respondent about the sexual abuse two or three times, but Respondent kept telling her that if she was lying she would get into trouble. C eventually just stopped telling Respondent about the sexual abuse. (C, McNeeley testimony; State Exhibits 12, 13; Respondent Exhibit A, Bates Nos. 0506-0509, Exhibit B)

Respondent has stated that he had concerns about whether C was truthful when she reported the sexual abuse because she did not show any signs of anxiety as was typical from her when reporting trauma, and he would have expected her to be more nervous or hesitant. He has also indicated that he had concerns that the children had a plan to get back into their mother's care. (Respondent Exhibit A, Bates page 0506; State Exhibit 12; McNeeley, Respondent testimony)

6. Although he is a mandatory reporter, Respondent never called the Child Abuse Hotline to report C's claim to him that her father was sexually abusing her, and he

a child with an open child welfare case, regardless of the setting in which the child resides. 441 IAC 172.1.

never made a written report of abuse to DHS. In addition, there is no evidence that Respondent ever documented the information about the abuse that was provided to him by C or his response to C (therapeutically or otherwise). There is no documentation of Respondent's decision making process concerning whether or not to make a child abuse report or how he would address this issue with C in her counseling. (Respondent Exhibit A; State Exhibits 8, 13; Respondent testimony)

Respondent testified that he did not think it was necessary for him to report C's sexual abuse report to DHS because he knew that there was a child protection worker already involved with the family. Respondent also understood that C had been removed from her father's home. Respondent also claimed that Shari McNeeley told him that she had made a report so he did not think he had to. Shari McNeeley credibly testified, however, that she would not have told Respondent that he did not have to report the abuse. McNeeley knew that Respondent was a mandatory reporter. McNeeley understood that each mandatory reporter has an independent duty to make a child abuse report to DHS because each individual reporter may have received different information concerning the abuse allegations. If someone reports child abuse to McNeeley, she always tells the person that they must call the Child Abuse Hotline (DHS Centralized Intake). (Respondent, McNeeley testimony)

McNeeley's testimony was consistent with the instructions and guidelines found in "Child Abuse: A Guide for Mandatory Reporters," which was published by DHS on July 1, 2010. The Guide provides the phone number for mandatory reporters to call to report suspected child abuse. The Guide states that the call shall be made within 24 hours of becoming aware of the situation, that a written report is required within 48 hours of the oral report, and that it is not the reporter's role to validate the abuse. The law does not require the reporter to have proof that the abuse occurred before reporting it. According to the Guide, if more than one mandatory reporter reasonably suspects abuse involving the same incident, they may jointly make a written report to DHS. If more than one reporter separately makes a report of suspected child abuse based on the same incident and the first report is currently being assessed, DHS will advise the subsequent reporters that the report of child abuse they are making has already been accepted as a case. When DHS decides that there is sufficient information to open a child abuse assessment, then the case is assigned to a child protection worker who has 20 business days to conduct the investigation and issue an assessment report determining if the abuse is founded or unfounded. (McNeeley testimony; State Exhibit 18, pp. 93-94, 161)⁴

⁴ See also Iowa Code sections 232.70, 232.71B(2009).

7. Within a few weeks of C reporting sexual abuse to Shari McNeeley and Respondent, the decision was made to send C back to live with her father. C reports that no one seemed to believe her about the sexual abuse, and she eventually told Respondent that the sexual abuse did not happen. C no longer wanted to talk to anyone about it, and she shut everyone out because she felt like everyone was against her. On November 15, 2010, Respondent discharged C from therapy due to meeting her therapy goals. (C, McNeeley, Respondent testimony; Respondent Exhibit B, Bates No. 0174; State Exhibit 14 p. 94)

8. C's father continued to sexually abuse her until 2013, when C and her mother went to the police. There was a criminal investigation and a second DHS investigation at that time. C's father was convicted of sexual abuse following these investigations, and he is currently in prison. C has repeatedly stated that she is no longer willing to participate in counseling or therapy because she does not trust counselors. (C testimony; State Exhibits 5, 13; Respondent Exhibit A, Bates No. 0470)

9. On February 25, 2014, the Board received a complaint concerning the mental health counseling that Respondent provided to J in 2009 and 2010. According to the complainant, J had reported: (1) that he told Respondent on 2 or 3 occasions that he was being molested by his father, and (2) that Respondent told J to "get over it" and required J to write a letter to his father to apologize for saying those things. The complaint was assigned to an investigator, who interviewed the complainant and several others. J and C's mother told the investigator that Respondent did not believe C when she told him that she was being molested by her father and that Respondent did not believe J or C when they had told Respondent about their injuries and they had visible bruises. (State Exhibits 4, 5; LS testimony)

10. J lived with his father until his father was arrested on December 12, 2013. At hearing, J testified that his father hit and punched him during the time he was in counseling with Respondent. J testified that he told the DHS workers who were working with his family about this abuse, and he told Respondent about the physical abuse on one occasion during a counseling session. According to J, Respondent did not believe him, "pretty much said he was lying," and made him write a letter apologizing to his father for making the allegations. It was J's recollection that after he signed the statement, Respondent brought his father into the room and told J to apologize verbally to his father and explain why he had lied. After this experience, J felt that he could not trust counselors, and he has not had any additional counseling since that time. (J testimony)

J could not remember what he specifically told the school employee in 2014 about the nature of the abuse that he reported to Respondent, but he denies that he would have said that he was “molested” or sexually abused by his father. J did recall telling the school employee that he no longer trusts counselors because Respondent told him that he was lying. (J testimony)

The record includes the following typed statement that was signed by J and is dated 12/29/2010:

To whom it may concern,
I made a statement of abuse that Dad hit and punched me repeatedly while [G] watched. I made this report up and it did not happen. The reason for lying is that Team Mom is the idea that we would do anything so we can return home to live with mom. Team Mom is made up of [G], [C] and I to go against Dad.

Both Respondent and FSRP Supervisor Jennifer Schmitz signed this statement as the “witnesses.” (State Exhibit 15, p. 129)

At hearing, J testified that it was the “DHS workers or others” who came up with the name “Team Mom.” J testified that he saw Respondent type this statement and was 100% certain that Respondent typed this statement. J identified Jennifer Schmitz as a social worker who supervised the visits with his mom. J recalled that Schmitz was present in the building when he signed the statement, but he did not recall Schmitz being present in the room with him when he signed the statement. (J testimony)

J did not know who the intended recipient of the written statement was, but he assumed it was for his father. The record includes a subpoena that was issued to Respondent on December 21, 2010 and which required Respondent to appear in court on January 4, 2011 with his treatment records for J and C and to testify in a civil case between J and C’s parents. The subpoena was requested by the attorney for J’s father. (Respondent Exhibit B, Bates No. 0181; J testimony)

At hearing, Respondent testified that he was aware that J had reported physical abuse during a home visit supervised by Jennifer Schmitz but that J never reported physical abuse directly to him. Respondent denied that he saw J for a counseling session on December 29, 2010 and also denied typing the statement that was signed by J. Respondent pointed out that he had discharged J from counseling on November 15, 2010. Respondent reports that he was no longer actively seeing clients on December 29,

2010 and that he has calendar notes indicating that he did not bill for an appointment with J on December 29, 2010. According to Respondent, the written statement was the idea of the FSRP workers, Jessica Schmitz and Melodee Whaley. Respondent testified that they asked him to sit in on the meeting with J as a witness because he had worked with J in the past and they wanted to show that they were not forcing him to do anything. (Respondent testimony; State Exhibit 15, p. 128)

The Board was unable to conclude, by a preponderance of the evidence, that J ever told Respondent, prior to December 29, 2010, that his father was hitting and punching him. Although it is undisputed that J reported physical abuse to the FSRP workers, there is no documentation in the record concerning such a report being made to Respondent during a counseling session. J was relying on his memory of what had occurred 5 or 6 years earlier when he testified that he told Respondent about the physical abuse one time. Although it is clear that Respondent was present when J signed the written statement on December 29, 2010, the Board was unable to conclude that J had a counseling session with Respondent on that date. Nevertheless, the Board believes that J perceived it to be a counseling session and that he continued to view Respondent as his counselor. The Board believed J's testimony that he lost all trust in counselors after he was required to sign the written statement and apologize to his father for lying about the physical abuse. (J testimony)

Respondent's Provision of Mental Health Counseling Services to JD

11. On January 5, 2011, Respondent left his employment with Mid-Iowa and joined the O'Rourke Group, where he was supervised by Peg O'Rourke, a licensed marriage and family therapist until he was licensed in September 2011. In April 2012, Respondent and Brandie Grinstead, LISW, took over the practice, and it is now known as Grinstead, Pierce & Associates, LLC. Respondent currently specializes in treating adolescents with trauma issues, as well as individuals with attention deficit hyperactivity disorder (ADHD). (Respondent testimony)

12. Respondent provided mental health counseling for 12 year old JD from January 15, 2014 through July 22, 2014. JD's mother (PO) and JD's father (TD) had separated and were going through a divorce. PO initially took JD to Respondent for counseling because JD was refusing to visit TD. On January 15, 2014, PO signed a Psychotherapist-Patient Services Agreement (Services Agreement) with Respondent, which included sections entitled "Limits On Confidentiality" and "Minors & Parents." (State Exhibits 19, 23, 24; PO, Respondent testimony) The "Minors & Parents" section of the Service Agreement states, in part:

Patients under 18 who are not emancipated, and their parents, should be aware that the law may allow parents to examine their child's treatment records. Because privacy in psychotherapy is often crucial to successful progress, particularly with teenagers, it is sometimes my policy to request an agreement from parents that they consent to give up their access to their child's records. If they agree, during treatment, I will only provide them with general information about the progress of the child's treatment, and his/her attendance at scheduled sessions. I will also provide parents with a summary of their child's treatment if they request it...

(State Exhibit 23, p. 217)

According to Respondent's contemporaneous documentation of the January 15, 2014 session with JD and PO:

- they discussed signing a release to discuss the treatment plan and generalities of treatment with TD, but not the specifics of what was said;
- they discussed that Respondent could share with TD the information that he received in the initial treatment planning session with the goal of working on the relationship between JD and TD;
- Respondent received a release from JD's mother, which was an exception because releases are not normally obtained for parents; and
- JD's father would be informed that there is treatment because the pending divorce appeared to be high conflict and some of the issues would resolve around the father so it was important to have him active in the treatment process.

(State Exhibit 24, p. 221)

The release that PO signed on January 15, 2014, however, was much broader than the release described in Respondent's documentation of their session. The release that PO signed authorized Respondent to release JD's psychotherapy notes to JD's father, TD. (Respondent Exhibit F)

JD and PO both testified at hearing about their recollections of the first meeting with Respondent. JD recalled that Respondent told her that he would help her to trust her father again and that everything she said would be confidential. PO recalled that Respondent assured them that everything JD said would remain confidential unless JD was at risk of injuring someone or being injured herself. PO testified the JD was "kind

of scared” of her father and was concerned that what she said would anger him. PO also recalled signing a number of forms pertaining to confidentiality. PO was given copies of all of the signed forms to take home. (JD, PO testimony)

13. On January 21, 2014, Respondent sent a letter to TD informing him that his daughter was in treatment and inviting him to participate in the treatment process. JD had counseling sessions with Respondent on January 23 and January 30, 2014. In the treatment record for January 30th, Respondent noted that JD was calling her father by his first name. (Respondent testimony; State Exhibit 24)

Respondent saw TD on at least two occasions without JD being present. TD’s first session with Respondent was on February 5, 2014. On February 7th, there was a mediation session in the pending dissolution between TD and PO. According to PO, during their mediation session TD brought up some things that JD had told Respondent during their counseling sessions. Specifically, TD said that: (1) JD was calling TD by his first name during treatment sessions; and (2) JD told Respondent that TD had twisted her arm. JD later overheard PO was telling someone about what TD had said during the mediation. JD became very upset because she felt that Respondent had violated his agreement to keep what she said to him during their sessions confidential. After this, JD no longer trusted Respondent as a counselor, and she did not want to continue in counseling with him. JD told Respondent how she felt during her counseling session on February 27, 2014, and she walked out of the session. (PO, JD, TD, Respondent testimony; State Exhibit 24, pp. 226, 227, 230)

PO admitted that she, as well as others, knew prior to the mediation that JD was calling TD by his first name. PO also knew that JD was upset with her father for twisting her arm while “roughhousing” or engaging in “horseplay.” TD testified that he had heard from other sources that JD was calling him by his first name. He further testified that JD had told him, before she started counseling with Respondent, that she did not want to visit him because he abused her by twisting her arm. (PO, TD testimony)

14. On April 7, 2014, TD’s attorney filed an Application in the pending dissolution proceeding to have Respondent become JD’s court-appointed counselor. (Respondent testimony; Respondent Exhibit J) Four days later, PO filed her complaint with the Board alleging that Respondent breached confidentiality while providing counseling to JD. (State Exhibit 19; Respondent Exhibit H)

On April 17, 2014, a district court judge issued an Order Granting Application for Court Appointed Counselor and named Respondent as the appointed independent counselor

for JD in the pending dissolution proceeding. JD resumed counseling with Respondent and was discharged from counseling on July 22, 2014 because “the goals of treatment were completed.” Both TD and JD testified that they currently have a good relationship. (TD, JD testimony; Respondent Exhibits J, K)

CONCLUSIONS OF LAW

Pursuant to Iowa Code section 154D.3, the Board is required to adopt rules relating to standards required for licensees engaging in the professions covered by chapter 154D, and it is required to adopt rules for the professional conduct of persons licensed under chapter 154D. The Board has adopted rules relating to Discipline for Marital and Family Therapists and Mental Health Counselors at 645 IAC chapter 33.

Count I- Violating a Law Related to the Profession

A license to practice a profession shall be revoked, suspended, or otherwise disciplined when the licensee is guilty of...other acts or offenses as specified by board rule.⁵ Pursuant to its rules, the Board may impose any of the disciplinary sanctions provided in rule 645 IAC 33.3 (147,272C) when the Board determines that the licensee is guilty of violating a regulation or law of this state, another state, or the United States, which relates to the practice of the profession.⁶

At all times relevant to the Statement of Charges,⁷ Iowa Code section 232.69 required certain classes of persons to report child abuse, as provided in Iowa Code section 232.70. Counselors and mental health professionals are designated as mandatory reporters under Iowa Code section 232.69.⁸ In 2009 and 2010, Respondent was a mandatory reporter because he was employed to provide individual counseling to clients.

Each report made by a mandatory reporter, as defined in subsection 232.69, subsection 1, shall be made both orally and in writing.⁹ The oral report shall be made by telephone or otherwise to the department of human services and must be made within twenty-

⁵ Iowa Code section 147.55(9)(2009, 2015).

⁶ 645 IAC 33.2(13), IAB 1/14/09. This rule remains in effect, unchanged, to the current date.

⁷ The relevant portions of Iowa Code section 232.69 and 232.70 have remained unchanged since the 2009 Iowa Code.

⁸ Iowa Code section 232.69(1)(b)(12)(2009).

⁹ Iowa Code section 232.70(1)(2009).

four hours.¹⁰ The written report shall be made to the department of human services within forty-eight hours after such oral report.¹¹ At all times relevant to the Statement of Charges, the administrative rules of the Department of Human Services (DHS) provided that reports of child abuse shall be received by local department offices, the central abuse registry, or the Child Abuse Hotline.¹²

The preponderance of the evidence in the record established that: 1) Respondent was employed to provide mental health counseling to C in 2009 and 2010; 2) in January 2010, C told Respondent that her father was sexually abusing her; and 3) Respondent failed to make an oral or written report to DHS of the child abuse that was reported to him by C.

Respondent admits that C told him that her father was sexually abusing her. Respondent also admits that he did not make a child abuse report directly to DHS. Respondent essentially claims that he did not have to make a report because DHS was already aware of C's claim of sexual abuse. Respondent's claim that a DHS employee (Shari McNeeley) told him that he did not have to file a child abuse report was not credible. Ms. McNeeley credibly testified that she fully understood the mandatory reporting requirements and would not have told Respondent that he did not have to make his own child abuse report. When abuse was reported to Ms. McNeeley as a DHS employee, she consistently told the reporter that they had to call the Child Abuse Hotline to make a report. Respondent's knowledge that DHS was already aware of C's sexual abuse allegation and was conducting an investigation of the report did not relieve him of his statutory duty as a mandatory reporter to file his own report with DHS.

It was Respondent's responsibility to know and to understand his legal responsibilities as a mandatory reporter. All mandatory reporters were and are required to complete two hours of training related to the identification and reporting of child abuse within six months of initial employment or self-employment and every five years thereafter.¹³ In addition, DHS has published a Guide for Mandatory Reporters. (State Exhibit 18) Finally, Respondent had acknowledged reading and understanding his employer's Policy and Procedure Manual, which reiterated his legal obligation as a mandatory reporter. The Policy and Procedural Manual clearly required employees to report suspected or witnessed abuse to DHS and to their supervisor. There is no evidence in the record that Respondent ever consulted his supervisor to discuss C's disclosure of

¹⁰ Iowa Code sections 232.69(1), 232.70(3)(2009).

¹¹ Iowa Code section 232.70(4)(2009).

¹² 441 IAC 175.22(1), IAB 7/2/08.

¹³ Iowa Code section 232.69(3)(b)(2009, 2015).

sexual abuse to him and his obligations as a mandatory reporter. Respondent violated Iowa Code section 232.69 when he failed to fulfill his legal responsibility as a mandatory reporter and failed to make a child abuse report to DHS concerning the abuse information that C disclosed to him. Respondent has violated Iowa Code section 147.55(9) and 645 IAC 33.2(13).

It was also alleged that Respondent violated these same legal provisions when he failed to make a child abuse report to DHS concerning abuse that was reported to him by J. There is no credible evidence in the record that J ever told Respondent that his father was molesting or sexually abusing him. At hearing, J testified that he told Respondent, on just one occasion, that his father was hitting and punching him. J's testimony relies on his memory of what occurred nearly five years ago, when he was 10 or 11 years old. It appears that J is referring to the December 29, 2010 meeting as the one time that he disclosed physical abuse to Respondent. Respondent had discharged J from counseling six weeks prior to this meeting.

Respondent testified that J had told FSRP Supervisor Jennifer Schmitz about physical abuse during one of her home visits. Respondent denies, however, that J ever reported the physical abuse to him during a counseling session. In addition, Respondent testified that he was only present on December 29, 2010 as a witness to J signing the written statement, which Respondent claims was initiated by Jennifer Schmitz. Given all of the inconsistencies in the testimony and the documents, the Board was unable to conclude that Respondent received a report of abuse from J that he was required to report to DHS as a mandatory reporter.

Count II: Failure to Comply With ACA Code of Ethics

Pursuant to its rules, the Board may impose any of the disciplinary sanctions provided in rule 645 IAC 33.3 (147,272C) when the Board determines that the licensee is guilty of failing to comply with the current Code of Ethics of the American Counseling Association (ACA). The Board has adopted the ACA Code of Ethics, by reference, in its rules and a copy is available on the ACA's website.¹⁴ Section B of the ACA's Code of Ethics pertains to Confidentiality and Privacy. Respondent is charged with violating sections B.1.d. and B.5.c., which provide as follows:

¹⁴ 645 IAC 33.2(1)"b," IAB 1/14/09. This rule remains in effect, unchanged, to the current date.

B.1.d. Explanation of Limitations

At initiation and throughout the counseling process, counselors inform clients of the limitations of confidentiality and seek to identify situations in which confidentiality may be breached.

...

B.5.c. Release of Confidential Information

When counseling minor clients or adult clients who lack the capacity to give voluntary consent to release confidential information, counselors seek permission from an appropriate third party to disclose information. In such instances, counselors inform clients consistent with their level of understanding and take appropriate measures to safeguard client confidentiality.

Count II pertains to Respondent's alleged disclosures to TD about what JD had said about TD during her counseling sessions. Specifically, it is alleged that Respondent told TD that: 1) JD referred to him by his first name; and 2) JD reported that TD had twisted her arm. The Board was unable to conclude, by a preponderance of the evidence, that Respondent violated sections B.1.d. or B.5.c. of the ACA Code of Ethics. At JD's initial counseling session, Respondent discussed the limits of confidentiality with PO and obtained her signature on several forms and releases. PO signed a Services Agreement that included provisions on "Limits on Confidentiality" and "Minors & Parents." PO also signed an "Authorization to Release" JD's Psychotherapy Notes to TD. Respondent gave PO copies of these forms to take home with her.

Even without a signed release, Respondent would have been authorized to share information about JD's progress in treatment with TD. Although it is clear that PO and JD misunderstood what could be shared with TD concerning JD's counseling sessions, the preponderance of the evidence failed to establish that Respondent violated sections B.1.d. or B.5.c. of the ACA Code of Ethics with respect to JD. As will be discussed in connection with Count III, Respondent must bear some responsibility for the inconsistencies in the written and verbal information that he provided to PO and JD, which likely led to their misunderstandings about the limits of confidentiality and contributed to JD's loss of trust and confidence in counselors.

Count III: Practices Harmful or Detrimental to the Public

A license to practice a profession shall be revoked, suspended, or otherwise disciplined when the licensee is guilty of...engaging in unethical conduct or practice harmful or detrimental to the public.¹⁵

Count III pertains to Respondent's actions with respect to all three clients: C, J, and JD. C credibly testified that when she told Respondent that her father was sexually abusing her, his only response was to warn her that she could get in a lot of trouble if she was lying. There is no doubt that Respondent's reaction and response to C's disclosure significantly contributed to her decision to just give up and stop trying to tell the adults around her that her father was sexually abusing her. There was no indication in the exhibits or in the testimony at hearing that Respondent took any appropriate steps, as C's individual counselor, to address what C told him about the sexual abuse. There was no indication that Respondent demonstrated any kind of support or concern for C. There is no evidence in the record to show that Respondent documented C's disclosures about the sexual abuse in her treatment record or that he consulted his supervisor about how he should proceed. There was no documentation of Respondent's decision making process whatsoever. Respondent simply appears to have quickly dismissed C's disclosure of sexual abuse as something that she made up because she wanted to live with her mother.

Although many other people also failed C, it is Respondent's actions as her counselor that is at issue in this proceeding. Respondent response to C's disclosure of sexual abuse was grossly harmful to C's emotional and mental well-being. Respondent's immediate questioning of C's veracity may have caused others to doubt her as well and may have contributed to the perpetuation of the sexual abuse against her. Respondent has repeatedly stated that he did not believe C because she did not appear anxious or nervous when she reported the sexual abuse to him. Respondent purports to specialize in treating children who have experienced trauma, but his explanations for his actions in this case demonstrate a flawed and simplistic approach to assessing children who have experienced significant trauma. There is no evidence that Respondent ever considered the possibility that C was dissociating when she reported the sexual abuse to him. Even at hearing, Respondent's testimony with respect to his treatment of all three clients demonstrated a tremendous lack of insight into his proper role as a mental health counselor as well as a lack of knowledge with respect to the assessment and

¹⁵ Iowa Code section 147.55(3)(2009, 2015); 645 IAC 33.2(4). 645 IAC 33.2(4) has remained unchanged since 2009. See Iowa Administrative Bulletin, 1/14/09.

treatment of trauma victims. Respondent's response to C's disclosure of sexual abuse constituted a practice that was harmful or detrimental to the public, in violation of Iowa Code section 147.55(3) and 645 IAC 33.2(4).

J was harmed by Respondent's participation in obtaining the December 29, 2010 written statement from J which recanted his prior claim of physical abuse. Respondent's professional responsibility to J did not end completely when he discharged J from counseling on November 15, 2010. J was a child, and he continued to view Respondent as his counselor. Even if it was solely Jennifer Schmitz's idea to have J sign the written statement, as Respondent asserts, Respondent should have realized that his participation in obtaining J's signature on the written statement could have been harmful to J's emotional well-being. There was no legitimate reason for Respondent to participate in obtaining J's signature on the written statement. It was not unreasonable for J to interpret Respondent's presence and participation that day as an indication that Respondent (his counselor) was accusing him of lying about the physical abuse. As a result of this experience, J no longer trusts counselors. Respondent's involvement with obtaining J's signature on the December 29, 2010 written statement constituted a practice that was harmful or detrimental to the public, in violation of Iowa Code section 147.55(3) and 645 IAC 33.2(4).

JD was also harmed by Respondent's failure to effectively communicate the limits of confidentiality of their counseling sessions with her and with PO. Although Respondent had discussed the limits of confidentiality with them and had obtained signed releases from PO, there are inconsistencies between the documentation of their discussion and the releases that PO actually signed. It is likely that these inconsistencies contributed to the misunderstandings that arose. Moreover, when Respondent became aware that JD and PO both believed he had violated the confidentiality of JD's counseling sessions by sharing information with TD, he missed important opportunities to repair any misunderstanding and restore JD's trust and confidence in him and in the counseling profession as a whole.

DECISION AND ORDER

IT IS THEREFORE ORDERED that license number 001194 is hereby placed on PROBATION for a period of five (5) years, effective immediately upon service of this Decision and Order, and subject to the following terms and conditions:

A. Practice Monitor. Respondent's practice as a mental health counselor shall be supervised by a Board approved licensed mental health counselor (LMHC) who will serve as Respondent's Practice Monitor during the probationary period.

1. Within thirty (30) days of the issuance of this Decision and Order, Respondent shall submit to the Board the name(s) and resume(s) of proposed Practice Monitors. The person(s) whose name(s) are submitted shall not have a pre-existing personal or business relationship with Respondent.

2. Respondent must meet with the Board-approved Practice Monitor on a weekly basis, at which time the Practice Monitor shall review the records and treatment of at least 10% of the clients who were seen by Respondent in the prior week. Respondent shall maintain a list of the clients that he sees each week, and the Practice Monitor shall have a system in place for making a random selection of client records for review each week. The Practice Monitor shall explain the system used to select client records for review in the first quarterly report.

3. The Practice Monitor shall provide quarterly written reports to the Board concerning Respondent's compliance with the standards of acceptable and prevailing practice for a licensed mental health counselor in this state. The reports will be due no later than March 5, June 5, September 5, and December 5 of each calendar year during Respondent's probation.

4. Respondent must secure all necessary written releases from clients to allow the Board-approved Practice Monitor to review the client's treatment record and discuss the client's treatment plan with Respondent.

5. Respondent shall be solely responsible for all costs associated with the practice monitoring requirement.

B. TFCBT Education. During the first year of probation, Respondent must successfully complete Board-approved education/training for Trauma Focused Cognitive Behavioral Therapy (TFCBT). It is Respondent's responsibility to identify an appropriate course and obtain Board approval prior to attending the course. Respondent shall provide the Board with written verification of his completion of the course.

C. Ethics Education. Respondent shall be required to complete three (3) hours of continuing education in ethics during each year of his probation. Respondent shall submit proof of his satisfactory completion of the three (3) hours of ethics when he files his quarterly written report to the Board in December.¹⁶

D. Mandatory Reporter Training. Respondent shall be required to complete the two hour training for mandatory reporters, as outlined in Iowa Code section 232.69(3)(b), every year during the probationary period. Respondent shall submit proof of his satisfactory completion of the two (2) hours of mandatory reporter training when he files his quarterly report to the Board in December.

E. Quarterly Reports. Respondent shall file written quarterly reports with the Board throughout his probationary period. The reports will be due no later than March 5, June 5, September 5, and December 5 of each calendar year during Respondent's probation. The reports shall include information concerning: Respondent's current address and phone number, his current employment or practice location, the nature of his mental health counseling practice, and documentation of his weekly sessions with his practice monitor throughout the prior quarter.

IT IS FURTHER ORDERED, pursuant to Iowa Code section 272C.6, that Respondent Michael Pierce shall pay \$75.00 for fees associated with the disciplinary hearing and \$513.75 for the court reporter fees. The total fees of \$588.75 shall be paid within thirty (30) days of receipt of this decision.

Dated this 13th day of October, 2015.

Erik Oostenink, MA, LMHC

Erik Oostenink, MHC, Chairperson
Iowa Board of Behavioral Science

¹⁶ The current rules of the Board require 40 hours of continuing education for license renewal each biennium. 645 IAC 32.2. Of those 40 hours, at least three (3) hours are required to be in ethics. 645 IAC 32.3(3). Respondent's probation requires him to complete and report an additional three (3) hours of ethics because he must complete at least one three (3) hour ethics course in each calendar year.

cc: Jason C. Palmer, 801 Grand Ave., Suite 3700, Des Moines, IA 50309-2727 (CERTIFIED); Jennifer E. Klever-Kirkman, Robberts & Kirkman, LLLP, 205 Washington Street, Suite 201, Burlington, IA 52601 (FIRST-CLASS MAIL); Laura Steffensmeier, Assistant Attorney General, Hoover Building-2nd Floor (LOCAL)